

viz. if you find the fact thus (leaving it to them what to find) then you are to find for the plaintiff; but if you find the fact thus, then it is for the defendant.

But in the case propounded by me, where it is possible in that special manner, the jury may find against the direction of the Court in matter of law, it will not follow they are therefore finable; for if an attaint will lye upon the verdict so given by them, they ought not to be fined and imprisoned by the Judge for that verdict; for all the Judges have agreed upon a [145] full conference at Serjeants Inn, in this case. And it was formerly so agreed by the then Judges in a case where Justice Hide had fined a jury at Oxford, for finding against their evidence in a civil cause. That a jury is not finable for going against their evidence, where an attaint lies; for if an attaint be brought upon that verdict, it may be affirmed and found upon the attaint a true verdict, and the same verdict cannot be a false verdict, and therefore the jury fined for it as such by the Judge, and yet no false verdict, because affirmed upon the attaint.

Another reason that the jury may not be fined in such case, is, because until a jury have consummated their verdict, which is not done until they find for the plaintiff or defendant, and that also be entred of record; they have time still of deliberation, and whatsoever they have answered the Judge upon an interlocutory question or discourse, they may lawfully vary from it if they find cause, and are not thereby concluded.

Whence it follows upon this last reason, that upon tryals wherein no attaint lies, as well as upon such where it doth, no case can be invented; wherein it can be maintained that a jury can find, in matter of law, nakedly against the direction of the Judge.

And the Judges were (as before) all of opinion, that the return in this latter part of it, is also insufficient, as in the former, and so wholly insufficient.

But that this question may not hereafter revive if possible, it is evident by several resolutions of all the Judges, that where an attaint lies, the Judge cannot fine the jury for going against their evidence or direction of the Court, without other misdemeanour.

For in such case, finding against, or following the direction of the Court barely, will not barr an attaint, but in some case the Judge being demanded by, and declaring to, the jury, what is the law, though he declares it erroneously, and they find accordingly, this may excuse the jury from the forfeitures; for though their verdict be false, yet it is not corrupt, but the judgment is to be revers'd however upon the attaint; for a man loseth not his right by the Judges mistake in the law.

Therefore if an attaint lies for a false verdict upon indictment not capital (as this is) either by the common or statute law, by those resolutions, the Court would not fine the jury in this case, for going against evidence, because an attaint lay.

[146] But admitting an attaint did not lye (as I think the law clear it did not) for there is no case in all the law of such an attaint, nor opinion, but that of Thirnings, 10 H. 4, Attaint, 60 & 64, for which there is no warrant in law, though there be other specious authority against it, toucht by none that argued this case.

The question then will be, whether before the several Acts of Parliament, which granted attaints, and are enumerated in their order in the Register, the Judge by the common law, in all cases, might have fined the jury, finding against their evidence and direction of the Court, where no attaint did lye, or could so do, yet if the statutes which gave the attaints were repeal'd.

If he could not in civil causes before attaints granted in them, he could not in criminal causes, upon indictment (wherein I have admitted attaint lies not) for the fault in both was the same, viz. finding against evidence and direction of the Court, and by the common law; the reason being the same in both, the law is the same.

That the Court could not fine a jury at the common law, where attaint did not lye (for where it did, is agreed he could not) I think to be the clearest position that ever I consider'd, either for authority or reason of law.

After attaints were granted by statutes generally; as by Westminster the First, c. 38, in pleas real, and by 34 E. 3, c. 7, in pleas personal, and where they did lye at common law (which was only in writs of assise) the examples are frequent in our books of punishing jurors by attaint.

But no case can be offer'd, either before attaints granted in general, or after, that ever a jury was punish'd by fine and imprisonment by the Judge, for not finding